

TENTATIVE RULING

Case: Surebuilt Construction, Inc. v. Thoele
Case No. CV2025-1723

Hearing Date: June 18, 2026 **Department Thirteen** **9:00 a.m.**

The Court, in its discretion, considers cross-complainants Nick Thoele and Katherine Marin's untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Cross-defendants Surebuilt Construction, Inc. and Mario F. Gonzalez's demurrer to the entire cross-complaint as to cross-defendant Mario F. Gonzalez is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not allege sufficient facts to maintain the asserted causes of action against cross-defendant Mario F. Gonzalez. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504; Cross-complaint, ¶¶ 2-4, 9-11, 15-16, & 37-40.)

Cross-defendants' demurrer as to the second cause of action (negligence) in the cross-complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants concede that the demurrer should be sustained as to this cause of action. (Opposition, p. 3.)

Cross-defendants' demurrer as to the third cause of action (cancellation of instrument) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (Civ. Code, § 3412; Cross-complaint, ¶¶ 14-16 & 26-31.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Cross-defendants' demurrer as to the fourth cause of action (declaratory relief) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623-1624; Cross-complaint, ¶¶ 33-35.)

Cross-defendants' demurrer as to the fifth cause of action (intentional misrepresentation) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 & 645; Cross-complaint, ¶¶ 8-10, 14-16, & 36-43.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury, supra*, 14 Cal.App.4th at p. 616.)

Cross-defendants' motion to strike is **DENIED**. (Civ. Code, §§ 435, 436.) As to their request to strike punitive damages from cross-complainant's prayer, cross-defendants have failed to show that the cross-complaint does not support a request for punitive damages, given that the Court is overruling their demurrer as to the fifth cause of action (intentional misrepresentation). (Civ. Code, § 3294; Cross-complaint, ¶¶ 36-43.) As to their request to strike attorney's fees and other

improper or irrelevant matters, cross-defendants failed to “quote in full the portions sought to be stricken” or state the paragraph, cause of action, count, or defense sought to be stricken in their notice of motion. (Cal. Rules of Court, rule 3.1322(a).)

Cross-defendants shall answer the cross-complaint by no later than **June 29, 2026**. (Cal. Rules of Court, rule 3.1320(j).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vaidya v. Dhesi et al.**
 Case No. CV2026-0221

Hearing Date: **June 18, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer

On the Court's own motion, defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, and Blueberry Trading LLC's demurrer to complaint is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

Motions to quash

On the Court's own motion, defendants Rajpreet Dhesi and Anita Dhesi's motion to quash deposition subpoena for production of business records and Blueberry Trading LLC's motion to quash deposition subpoena for production of business records are **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.